

TAB 15



Board of Education Report

[Back to Order of Business](#)

File #: Rep-230-22/23, Version: 1

Approval of the Issuance of a Notice of Violation for Academy of Media Arts**April 18, 2023****Charter Schools Division****Action Proposed:**

Approve the issuance of a Notice of Violation to Academy of Media Arts (“Charter School”), pursuant to Education Code section 47607(f) and (g) and corresponding state regulations, requesting that Academy of Media Arts take appropriate action(s) to address the violations identified in the Notice of Violation by May 18, 2023, and authorize staff to submit and receive any documents or evidence in support of, or in response to, the Notice of Violation.

Background:

Academy of Media Arts is a 9-12 school currently serving 145 students on a private facility in Downtown Los Angeles at 345 S. Figueroa St., Los Angeles, CA 90071, in Board District 2 and Region East. Academy of Media Arts was approved by the LAUSD Board of Education on January 8, 2019, to serve 500 students in grades 9-12.

Revocation Standards:

Pursuant to Education Code section 47607, subdivision (f), a charter may be revoked by the chartering authority if the chartering authority finds, through a showing of substantial evidence, that the charter school did any of the following:

- (1) Committed a material violation of any of the conditions, standards, or procedures set forth in the charter;
- (2) Failed to meet or pursue any of the pupil outcomes identified in the charter;
- (3) Failed to meet generally accepted accounting principles, or engaged in fiscal mismanagement; and/or
- (4) Violated any law.

Before revocation, the chartering authority shall notify the charter school of any violation of this section [Section 47607] and give the charter school a reasonable opportunity to remedy the violation, unless the chartering authority determines, in writing, that the violation constitutes a severe and imminent threat to the health or safety of the pupils. (Ed. Code section 47607(g).)

Based on evidence collected and reviewed by Charter Schools Division staff in accordance with its oversight responsibilities, Charter Schools Division staff has identified a number of issues and violations in Academy of Media Arts’ practices and operations amounting to multiple grounds for revocation pursuant to Education Code section 47607, subdivision (f); specifically, failed to meet or pursue any of the pupil outcomes identified in the charter; and violations of the law. These violations are evidenced by and set forth in the attached Notice of Violation and accompanying exhibits.

Grounds for Revocation and Supporting Evidence:A. Fails to Meet or Pursue Any of the Pupil Outcomes Identified in the Charter

Academy of Media Arts must comply with all requirements pertaining to pupil outcomes and is responsible for meeting pupil outcomes and demonstrating positive academic achievement for all students. Academy of Media Arts' 2021-2022 California School Dashboard outcomes, internal assessment outcomes, and English Learner progress outcomes indicate that the charter school's current academic performance levels are not meeting the academic needs of its students.

Based on the 2022 California School Dashboard, Academy of Media Arts performed significantly lower than the state in English Language Arts (ELA) and Math, and did not meet participation rates of 95% in those areas. In ELA, the charter school had an average Distance from Standard (DFS) of -124.9, as compared to the state's average DFS of -12.2. In Math, the charter school had an average DFS of -200.2, as compared to the state's average DFS of -51.7.

Academy of Media Arts' Fall 2021 to Spring 2022 Northwest Evaluation Association Measures of Academic Progress (NWEA MAP) Student Growth Summary Report indicates that in Reading, 9th and 10th grade students did not show one year's progress. In Language Usage, 9th, 10th, and 11th grade students did not show one year's progress. Academy of Media Arts submitted the NWEA MAP Student Growth Summary Report in Math, however the report did not include the Conditional Growth Index (CGI) in order to determine one year's growth. Therefore, the data for Math submitted by the charter school was incomplete.

In 2020-2021, Academy of Media Arts did not reclassify any of its English Learner students, resulting in a 0.0% reclassification rate, as compared to the state's rate of 6.9%. In addition, for the past two consecutive years (2020-2021 and 2021-2022), Academy of Media Arts' percentages of Long-Term English Learners (LTEL) was at 40.0% and 31.0%, respectively, were significantly higher than the state's rates of 17.1% and 18.1%, respectively.

The aforementioned academic performance concerns (e.g., California School Dashboard, NWEA MAP, and English Learner progress) are exacerbated by the school's ongoing record of issues related to teacher credentialing, high teacher vacancy, certificated employee turnover, academic leadership turnover, and the allotment of non-core classes, which are discussed further in the Notice of Violation.

B. Violations of Law

Academy of Media Arts has violated provisions of law, including but not limited to, meeting the minimum annual instructional minutes contained in Education Code:

- Section 47612.5: This section states, in part, a charter school with pupils in grades 9-12, offer, at a minimum, 64,800 minutes.
- Section 47604.3: This section states, "a charter school shall promptly respond to all reasonable inquiries, including, but not limited to, inquiries regarding its financial records, from its chartering authority, the county office of education that has jurisdiction over the school's chartering authority, or from the Superintendent of Public Instruction and shall consult with the chartering authority, the county office of education, or the Superintendent of Public Instruction regarding any inquiries."

Academy of Media Arts' 2022-2023 Academic Calendar and Bell Schedule does not offer the legally required minimum annual instructional minutes. Per Education Code section 47612.5, "For each fiscal year, offer, at a minimum, the following number of minutes of instruction...To pupils in grades 9 to 12, inclusive 64,800 minutes." On November 7, 2022, the District issued a Notice to Cure regarding the inaccuracy and/or inappropriate monitoring by Academy of Media Arts of the Bell Schedule, Master Schedule, and offered instructional minutes. On December 2, 2022, Academy of Media Arts responded to the District with an updated Bell Schedule and Academic Calendar, which continued to show a deficit of required instructional minutes. The District informed the Academy of Media Arts' Board on December 20, 2022, and again on January 17, 2023. However, as of the writing of this report, Academy of Media Arts has not provided a response and has not resolved the violations and fails to provide its students with the required amount of instruction established in California law. Further, Academy of Media Arts' lack of responsiveness to its authorizer regarding the status of its instructional minute compliance violates Education Code section 47604.3.

It is important to reiterate that the aforementioned violations are especially concerning given the fact that Academy of Media Arts' charter indicates its commitment to exceed the required State minimum by offering 66,030 minutes of instruction annually. Academy of Media Arts' Board took specific action to reduce the offering of instructional minutes (to 57,285 minutes for 9th and 10th grade students and 58,695 minutes for 11th and 12th grade), and approved a Master Schedule that allocates 28% of its instructional minutes to non-core courses. This raises particular concerns regarding Academy of Media Arts' capacity to provide students with an educational experience with desired academic outcomes represented in the approved charter.

In total, the failure to meet or pursue pupil outcomes identified in the charter, the violation of the annual minimum instructional minutes requirement, and the insufficient monitoring by the Academy of Media Arts' Board, call into serious question the organization's ability to successfully implement the charter in accordance with applicable law and charter requirements.

Additionally, through the District's annual oversight visits and ongoing monitoring of Academy of Media Arts since 2019-2020, the first year of the charter term, the District has noted non-compliance in numerous areas of governance and operations. Despite certifying compliance on an annual basis, the Academy of Media Arts' Board has failed to effectively monitor and adhere to compliance requirements over the course of this charter term, as evidenced by the Annual Performance-Based Oversight Visit Reports' ratings of *Unsatisfactory* and *Developing* in the 2019-2020, 2020-2021, 2021-2022, and 2022-2023 school years, and the issuance of six Notices to Cure addressing major compliance areas, including but not limited to the following: employee criminal background clearances, employee tuberculosis clearances, teacher credentialing and appropriate assignments, mandated trainings, timely response to all reasonable inquiries, Local Control and Accountability Plan submission, maintaining required number of Board Members per Bylaws, breach of the operative charter, and meeting minimum annual instructional minutes.

Expected Outcomes:

Academy of Media Arts is required to remedy the violation(s) listed in the attached Notice of Violation on or before May 18, 2023. Academy of Media Arts' failure to remedy the violation(s) will lead to a recommendation to the Board of Education (Board) to issue a Notice of Intent to Revoke and Notice of Facts in Support of Revocation pursuant to statutory and regulatory provisions.

A charter school may continue to operate during the pendency of an appeal if the revocation decision is based solely on the Board finding that the charter school either (1) committed a material violation of any of the conditions, standards, or procedures set forth in the charter, or (2) failed to meet or pursue any of the pupil

outcomes identified in the charter, unless the Board determines that the violation constitutes a severe or imminent threat to the health or safety of pupils. (Ed. Code section 47607(l).) The charter school may appeal the revocation to the Los Angeles County Office of Education (LACOE) within 30 days following the final decision of the Board. (Ed. Code section 47607(i)(l).)

Board Options and Consequences:

“Yes” - The approval of the issuance of the Notice of Violation to Academy of Media Arts directs Charter Schools Division staff to issue the Notice of Violation and thereby initiate the revocation process. Staff would be authorized to receive any response and supporting evidence provided by Academy of Media Arts by the remedy period specified in the Notice of Violation. Such violation(s), if not cured by Academy of Media Arts by May 18, 2023, as specified in the Notice of Violation, can lead to revocation of Academy of Media Arts’ charter granted by the District. Further, at a subsequent Board of Education meeting, the Charter Schools Division will report Academy of Media Arts’ response to the Notice of Violation and staff recommendation to the Board as to whether to proceed with the revocation process.

“No” - The denial of the issuance of the Notice of Violation to Academy of Media Arts directs Charter Schools Division staff not to issue the Notice of Violation. Academy of Media Arts will not be required to respond to a Notice of Violation and the revocation process will not be initiated. Academy of Media Arts would continue its operations under the charter granted by the District.

Policy Implications:

There are no policy implications at this time.

Budget Impact:

The budget impact will be dependent on the resolution of revocation proceedings.

Equity Impact:

Not applicable

Issues and Analysis:

In accordance with applicable law, if the Board does not act within 60 calendar days of the conclusion of the remedy period specified in the Notice of Violation, the revocation process is terminated and the Notice of Violation is void. See attached Notice of Violation and Exhibits.

Attachments:

Attachment A - Notice of Violation and Exhibits for perusal at the following link:

https://drive.google.com/drive/folders/1bSfQRtfgEPzGdG7iB87JJH-NHa06X3AC?usp=share_link

Informatives:

Not applicable

Submitted:

04/13/23

File #: Rep-230-22/23, Version: 1

RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent of Schools

APPROVED & PRESENTED BY:


JOSÉ COLE-GUTIÉRREZ
Director
Charter Schools Division

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

REVIEWED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning

☒ Approved as to budget impact statement.

ATTACHMENT A
NOTICE OF VIOLATION TO
Academy of Media Arts
(Ed. Code, § 47607(f).)
BR-230-22/23
April 18, 2023

Pursuant to its oversight authorities and obligations under the Charter Schools Act¹ and corresponding state regulations, the Los Angeles Unified School District's ("District" or "LAUSD") Board of Education ("LAUSD Board") hereby issues this **NOTICE OF VIOLATION** to Academy of Media Arts ("AMA" or "Charter School") on the basis that the District has identified one or more specific violations committed by the Charter School to initiate revocation. Accordingly, the LAUSD Board issues this Notice of Violation to AMA based on the evidence and grounds for revocation set forth below.

LEGAL AUTHORITY

Charter schools are expected to provide a sound educational program that promotes student learning and to carry out its operations in a manner that complies with law and the terms of its charter. Pursuant to Education Code section 47607, subdivision (f), a charter may be revoked by the chartering authority, if the chartering authority finds, through a showing of substantial evidence, that the charter school did any of the following:

- (1) Committed a material violation of any of the conditions, standards, or procedures set forth in the charter.
- (2) Failed to meet or pursue any of the pupil outcomes identified in the charter.
- (3) Failed to meet generally accepted accounting principles, or engaged in fiscal mismanagement.
- (4) Violated any law.

Before revocation, the chartering authority shall notify the charter school of any violation and give the charter school a reasonable opportunity to remedy the violation, unless the chartering authority determines, in writing, that the violation constitutes a severe and imminent threat to the health or safety of the pupils.² At least 72 hours prior to any meeting at which the chartering authority will consider issuing a Notice of Violation, the chartering authority must provide the charter school with notice and all relevant documents related to the proposed action.³ With the exception of a severe and imminent threat to the health and safety of students, if the chartering authority is considering revoking a charter, it shall take action to approve and deliver a Notice of Violation to the charter school's governing body.⁴ The Notice of Violation⁵ must identify:

¹ (Ed. Code, §§ 47600, et seq.)

² (Ed. Code, §47607(g).)

³ (5 C.C.R. § 11968.5.2.)

⁴ (Ed. Code, § 47607(g).)

⁵ (5 C.C.R. § 11965.)

- (1) The alleged violation(s);
- (2) All evidence relied upon by the chartering authority in determining the charter school engaged in any of the acts or omissions identified including the date and duration of the alleged violation(s), showing the violation(s) is/are both material and uncured, and that the alleged violation(s) occurred within a reasonable period of time before a notice of violation is issued; and
- (3) The period of time that the chartering authority has concluded is a reasonable period of time for the charter school to remedy or refute the identified violation(s).^{6,7}

By the end of the remedy period identified in the Notice of Violation, the charter school's governing body may submit to the chartering authority a detailed written response and supporting evidence addressing each identified violation, including, as applicable, a refutation, remedial action taken, or proposed remedial action.⁸ At the conclusion of the remedy period specified in the Notice of Violation, the chartering authority will evaluate any response and supporting evidence provided by the charter school's governing body and take one of the following actions:

- Discontinue revocation of the charter and provide timely written notice of such action to the charter school's governing body, or
- Continue revocation of the charter, by issuing a Notice of Intent to Revoke to the charter school's governing body within 60 calendar days of the conclusion of the remedy period, if there is substantial evidence that the charter school has failed to remedy a violation identified in the Notice of Violation or to refute a violation to the chartering authority's satisfaction.⁹

The LAUSD Board hereby places AMA on notice of its intent to revoke AMA's charter if it fails to remedy the enumerated violations detailed below. The LAUSD Board reserves its right to immediately revoke AMA's charter upon a written determination that any violation constitutes a severe and imminent threat to the health or safety of the students.¹⁰ The LAUSD Board also reserves the right to consider additional evidence to substantiate any of the violations listed below. Accordingly, the LAUSD Board requests that AMA take all appropriate action(s) to remedy the violations identified in this Notice of Violation.

⁶ (5 CCR § 11965(f)(3))

⁷ In identifying the time period that will serve as the charter school's reasonable opportunity to remedy the identified violation(s), the chartering authority shall consider the amount of time reasonably necessary to remedy each identified violation, which may include the charter school's estimation as to the anticipated remediation time.

⁸ (5 C.C.R. § 11968.5.2.)

⁹ (5 C.C.R. § 11968.5.2)

¹⁰ (Ed. Code, § 47607(g).)

BACKGROUND INFORMATION

On January 8, 2019, AMA was authorized by the LAUSD Board to serve 500 students in grades 9-12. (*See Exhibit 1, AMA New Petition Board Report.*) AMA is in its fourth year of operation and currently serves 145 students. The current charter term expires on June 30, 2026.¹¹

During the term of the charter and within the specified periods noted below, AMA has failed to meet or pursue the pupil outcomes identified in its charter and has violated specified provisions of law. Additionally, the insufficient monitoring by the AMA governing board and ineffective actions on the part of AMA’s administrators to remedy these violations demonstrate significant errors in judgment that call into serious question the organization’s ability to successfully implement the charter in accordance with applicable law and charter requirements.

GROUND AND EVIDENCE FOR ISSUING NOTICE OF VIOLATION

I. GROUND FOR REVOCATION

1. AMA Fails to Meet or Pursue Any of the Pupil Outcomes Identified in the Charter (Ed. Code, § 47607(f)(2)).

AMA must comply with all requirements pertaining to pupil outcomes and is responsible for meeting pupil outcomes and demonstrating positive academic achievement for all students. As shown below, AMA has failed to demonstrate that its students are attaining the skills and knowledge, specified as goals in the educational program; and that AMA’s pupil outcomes are aligned with the state priorities. As evidenced below, data show that AMA’s current academic performance levels are not meeting the academic needs of its students.

A. Low Academic Performance: California School Dashboard Outcomes

AMA’s charter Element 1 (Educational Program) identifies goals related to the Local Control Funding Formula state priorities and asserts that, “Eleventh grade students will demonstrate proficiency in ELA, Math...” (*See Exhibit 2, AMA Charter, pg. 25.*)

In 2021-2022, AMA performed significantly lower than the state in English Language Arts (ELA) and Math and did not meet participation rates of 95% in those areas.

¹¹ (Ed. Code, § 47607.4 [“Notwithstanding the renewal process and criteria established in Sections 47605.9, 47607, and 47607.2 or any other law, effective July 1, 2021, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years”].)

CA School Dashboard 2021-2022	Academy of Media Arts	State	Participation Rate Met
ELA Average Distance From Standard	-124.9	-12.2	No: 74%
Math Average Distance From Standard	-200.2	-51.7	No: 70%

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

B. Low Academic Performance: NWEA MAP Outcomes

According to AMA’s charter, by 2021-2022, an expected annual measurable outcome of the Northwest Evaluation Association Measures of Academic Progress (NWEA MAP) assessment is that, “Students in grades 9 and 10 will demonstrate growth on the NWEA Measures of Progress (MAP) from fall to spring in language, math, (Algebra 1, Algebra 2, Geometry)...” (See Exhibit 2, AMA Charter, pg. 28.)

As noted in the August 2, 2022 Denial of the Requested Material Revision for Academy of Media Arts report (“MR Denial Report”), AMA failed to meet the NWEA MAP 2020-2021 annual growth target for 9th grade students in Reading and 10th grade students in both Reading and Math. Moreover, the MR Denial Report also noted concerns related to the limited number of students assessed, and therefore the efficacy of the data provided. (See Exhibit 3, MR Denial Report.) According to recent data submitted by AMA, the concerns related to academic assessment outcomes and demonstrated student growth persist.

The abovementioned concerns remain as Staff reviewed AMA’s submission of its Fall 2021 to Spring 2022 NWEA MAP Student Growth Report. Said report indicates that in Reading, 9th and 10th grade students did not show one year’s progress. In Language Usage, 9th, 10th, and 11th grade students did not show one year’s progress. In Reading, 9th grade students had a Conditional Growth Index (CGI)¹² of -11.57 (representing 23 “growth events”¹³ or valid test events) and 10th grade students had a CGI of -4.93 (representing 17 valid test events), and 11th grade students had a CGI of +1.63 (representing 11 valid test events). In Language Usage, 9th grade students had a CGI of -5.77 (representing 18 valid test events), 10th grade students had a CGI of -0.07 (representing 14 valid test events), and 11th grade students had a CGI of -0.03 (representing 12 valid test events). (See Exhibit 4, NWEA MAP Student Growth Summary 21-22.)

AMA reported a Norm Enrollment of 104 students in 2021-2022 (34 9th grade students; 34 10th grade students; and 36 11th grade students), which staff notes here in light of the limited number

¹² A CGI of 0.00 or better would reflect one year’s growth in a subject, as the overall average growth of students would meet or exceed the amount of growth generally observed by students in the same grade and subject with the same starting achievement level receiving similar amount of instructional exposure.

¹³ A “Growth event” is defined by the NWEA essentially as a valid test event.

of valid test events in the school's internal assessment results. (See Exhibit 5, AMA Norm Enrollment)

AMA submitted the NWEA MAP Student Growth Summary Report in Math, however the report did not include the CGI in order to determine one year's growth. Therefore, the data for Math submitted by the charter school was incomplete. (See Exhibit 204, NWEA MAP Student Growth Summary 21-22.)

NWEA MAP Fall 2021-Spring 2022	Grade(s)	# of Growth Events	Norm Enrollment	CGI
LangArts: Reading	9	23	34	-11.57
LangArts: Reading	10	17	34	-4.93
LangArts: Reading	11	11	36	1.63
LangArts: Lang Usage	9	18	34	-5.77
LangArts: Lang Usage	10	14	34	-0.07
LangArts: Lang Usage	11	12	36	-0.03
Math: Algebra 1	9	21	34	Incomplete*
Math: Geometry	10	16	34	Incomplete*
Math: Algebra 2	11	12	36	Incomplete*

*Information provided by Charter School was incomplete.

Additionally, according to AMA's charter, by 2021-2022, an expected annual measurable outcome of the NWEA MAP assessment is that, "70% of students will meet the RIT growth target in the winter and spring." (See Exhibit 2, AMA Charter, pg. 28.) Staff reviewed AMA's submission of its Fall 2021 to Spring 2022 NWEA MAP Student Growth Report, and notes concerns related to (a) the low number of students assessed, based on valid test events, as cited above; and (b) notwithstanding the former point, of the students who had valid test events, the data show that 70% of students did not meet their growth projections, as listed below:

- 9th grade Language Arts Reading: 9% of students met (23 valid test events)
- 10th grade Language Arts Reading: 41% of students met (17 valid test events)
- 11th grade Language Arts Reading: 55% of students met (11 valid test events)
- 9th grade Language Usage: 33% of students met (18 valid test events)
- 10th grade Language Usage: 29% of students met (14 valid test events)
- 11th grade Language Usage: 50% of students met (12 valid test events)
- 9th grade Algebra I: 10% of students met (21 valid test events)
- 11th grade Algebra II: 67% of students met (12 valid test events)
- 10th grade Geometry: 31% of students met (16 valid test events)
- 9th grade Science: 17% of students met (18 valid test events)
- 10th grade Science: 53% of students met (15 valid test events)
- 11th grade Science: percent of students met not reported (14 valid test events)

C. Low Academic Performance: English Learner Progress (Reclassification and LTEL Rates)

As provided in AMA's charter, "English Learners will demonstrate growth in their English language proficiency and achievement," (See Exhibit 2, AMA Charter, pg. 31.) however:

- In 2020-2021, AMA did not reclassify any of its English Learner students, resulting in a 0.0% reclassification rate, as compared to the state's rate of 6.9%. (See Exhibit 6, Data Set.)

Year	Students Redesignated FEP	Academy of Media Arts	State	School to State RFEF Comparison
2020-2021	2019-2020 Number of English Language Learners	2	1,148,024	Lower
	2020-2021 Number of Students Reclassified	0	79,667	
	2020-2021 Reclassification Rate	0.0%	6.9%	

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesreclass.asp>

- For the past two consecutive years (2020-2021 and 2021-2022), AMA's percentages of Long-Term English Learners (LTEL) at 40.0% and 31.0%, respectively, were significantly higher than the state's rates of 17.1% and 18.1%, respectively. (See Exhibit 6, Data Set.)

English Learners	2020-2021				2021-2022			
	Academy of Media Arts		State		Academy of Media Arts		State	
	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent
LTEL 6+ Years	6	40.0%	361,482	17.1%	9	31.0%	379,290	18.1%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesltel.asp>

The aforementioned academic performance concerns (e.g., California School Dashboard, NWEA MAP, and English Learner progress) are exacerbated by the school's ongoing record of issues related to teacher credentialing, high teacher vacancy, certificated employee turnover, academic leadership turnover, and the allotment of non-core classes, as discussed in further detail below.

- **Teacher Credentialing:** In the first three consecutive years of operation (2019-2020, 2020-2021, and 2021-2022), AMA had instructional staff members that were not appropriately credentialed and assigned, as documented in the Annual Performance-Based Oversight Visit Reports and Notices to Cure. (See Exhibit 7, 2019-2020 Oversight Report; Exhibit 8, 2020-2021 Oversight Report; Exhibit 9, 2021-2022 Oversight Report; Exhibit 10, Notice to Cure 12-19-19; and Exhibit 11, Notice to Cure 6-25-21.) Most recently, in 2022-2023, results from the oversight visit revealed that the school had only two fully credentialed teachers (Resource Specialist, Physical Education). Three teachers had a Temporary County Certificate (TCC) (English 11/12, New Media Arts, Music), and one teacher had an Emergency 30-Day Substitute Permit. (See Exhibit 12, 2022-2023 ESSA Grid.)

- **High Teacher Vacancy:** In 2020-2021,¹⁴ two courses (Biology and Chemistry) were taught by an online platform. (See Exhibit 13, 2020-2021 ESSA Grid; and Exhibit 14, 2020-2021 Staff Roster.) In 2021-2022,¹⁵ four courses (Biology, Chemistry, Physics, and Spanish) were taught by an online platform. (See Exhibit 15 2021-2022 ESSA Grid; and Exhibit 16, 2021-2022 Staff Roster.) In 2022-2023, at the time of the January 25, 2023 oversight visit, 14 courses (Algebra, Geometry, Algebra 2, Trigonometry, Biology, Chemistry, Physics, AP Biology, Spanish, English 9, English 10, World History, US History, and Government/Economics) were taught by a substitute or an online platform. (See Exhibit 17, 2022-2023 Master Schedule.)
- **Certificated Employee Turnover:** In 2020-2021, one of the six (17%) certificated staff was a continuing employee. In 2021-2022, one of the seven (14%) certificated staff was a continuing employee. In 2022-2023, two of the eight (25%) certificated staff were continuing employees. (See Exhibit 13, 2020-2021 ESSA Grid; Exhibit 15, 2021-2022 ESSA Grid; and Exhibit 12, 2022-2023 ESSA Grid.)
- **Academic Leadership Turnover:** AMA has employed at least seven different principals or interim principals in the past four years (2019-2020 to current school year). At the time of the January 25, 2023 oversight visit, AMA had an interim principal on staff.
- **Allotment of Non-Core Classes:** The 2022-2023 Master Schedule includes three non-core classes (e.g., Advisory, “CLUBS,” and “Incubator Lab”). Weekly, the schedule provides for 310 minutes of Advisory, 40 minutes of CLUBS, and 150 minutes of Incubator Lab, resulting in a total of 500 minutes being allocated for these non-core areas. This total is particularly concerning given that it represents approximately 28% of the 1,760 total weekly minutes. (See Exhibit 17, 2022-2023 Master Schedule.)

The above noted concerns with teacher credentialing, staff turnover, and designation of instructional minutes underscores the school's failure to pursue pupil outcomes identified in the charter, and has significantly impacted student learning and outcomes, and represents substantial concerns in AMA’s capacity to successfully implement the instructional program.

2. Violated Any Law (Ed. Code § 47607(f)(4)).

AMA Violated the Minimum Annual Instructional Minute Requirements and Failed to Promptly Respond to District Inquiries Regarding the Same

AMA violated the following provisions in law regarding the failure to offer a minimum number of instructional minutes.

Education Code section 47612.5 states, in part:

“(a) Notwithstanding any other law and as a condition of apportionment, a charter school shall do all of the following:

¹⁴ At the time of the Annual Performance-Based Oversight Visit based on the information provided by Charter School.

¹⁵ (See *id.*)

(1) For each fiscal year, offer, at a minimum, the following number of minutes of instruction:

- (A) To pupils in kindergarten, 36,000 minutes.
- (B) To pupils in grades 1 to 3, inclusive, 50,400 minutes.
- (C) To pupils in grades 4 to 8, inclusive, 54,000 minutes.
- (D) To pupils in grades 9 to 12, inclusive, 64,800 minutes.”

Education Code section 47604.3 states:

“A charter school shall promptly respond to all reasonable inquiries, including, but not limited to, inquiries regarding its financial records, from its chartering authority, the county office of education that has jurisdiction over the school's chartering authority, or from the Superintendent of Public Instruction and shall consult with the chartering authority, the county office of education, or the Superintendent of Public Instruction regarding any inquiries.”

AMA serves grades 9 to 12 and pursuant to state law is required to provide a minimum of 64,800 minutes of annual instruction. However, AMA is failing to meet that requirement for the 2022-2023 academic school year. Additionally, AMA’s lack of responsiveness to its authorizer regarding the status of its instructional minute compliance violates Education Code section 47604.3.

Evidence:

- On July 27, 2022, the AMA Board approved the 2022-2023 Academic Calendar (“Academic Calendar”) and 2022-2023 Bell Schedule (“Bell Schedule”), representing a change from AMA’s charter in the number of instructional minutes being offered. (*See* Exhibit 18, 07-27-22 Board Mtg Minutes.)
- On July 27, 2022, AMA provided copies of the Academic Calendar and Bell Schedule to the District. (*See* Exhibit 19, 2022-2023 Academic Calendar; Exhibit 20, 2022-2023 Bell Schedule.)
- On September 13, 2022, AMA provided the 2022-2023 Master Schedule (“Master Schedule”) to the District as part of a District school visit. (*See* Exhibit 17, 2022-2023 Master Schedule.)
- On November 7, 2022, the District issued AMA a Notice to Cure (“November 7 Notice to Cure”) regarding the inaccuracy and/or inappropriate monitoring by AMA of the Bell Schedule, Master Schedule, and offered instructional minutes. (*See* Exhibit 21, Notice to Cure 11-7-22.) The November 7 Notice to Cure specified that the Academic Calendar and Bell Schedule projected to fall short of the minimum annual instructional minutes for the 2022-2023 school year. The District requested that AMA provide evidence that Charter

School is currently, or will immediately be, in compliance with Education Code section 47612.5 and other applicable law and/or terms of its charter, which includes but is not limited to, compliance with meeting the annual minimum instructional minutes for the 2022-2023 school year.

- On December 2, 2022, AMA responded to the District in which AMA provided a revised Bell Schedule and Calendar and stated that “At the next board meeting on December 13, 2022, the Board of Directors will review and approve the previously mentioned Written Plan of Action for the Alignment of the Master Schedule and Bell Schedule, and for Charter School Board’s Monitoring of the Bell Schedule and Academic Calendar Related to Instructional Minutes in order to ensure that an issue of this nature will never recur.” (*See Exhibit 22, Board Response to Notice to Cure 11-7-22.*)
- On December 20, 2022, the District contacted AMA concerning AMA’s continued failure to monitor the school program related to the Bell Schedule and meeting minimum annual instructional minutes. (*See Exhibit 23, CSD Response to Board Response to Notice to Cure 11-7-22.*) The District informed AMA that the “new” Bell Schedule and Academic Calendar provided by AMA on December 2, 2022, continued to show a deficit of required instructional minutes by approximately 30 minutes and thus failed to meet the annual minimum instructional minutes of 64,800 minutes for the 2022-2023 school year.
- On January 17, 2023, the District provided a follow-up communication to AMA concerning the issues referenced in the December 20, 2022 communication (*See Exhibit 24 CSD Follow-up to Board Response to Notice to Cure 11-7-22.*) As of the writing of this Notice, AMA has not provided a response to the District’s January 17, 2023 follow-up communication.
- To date, four (4) months since the issuance of the November 7 Notice to Cure, AMA has not resolved the violations fully and fails to provide its students with the required amount of instruction established in California law.

The District incorporates evidence outlined above to substantiate violations of law. The evidence including the attached documents support that AMA did not comply with the instructional minute requirements and therefore violated Education Code section 47612.5. Further, AMA’s lack of responsiveness regarding the status of its instructional minute compliance violates Education Code section 47604.3.

It is important to reiterate that the aforementioned violations are especially concerning given the fact that AMA’s charter indicates its commitment to exceed the required state minimum by offering 66,030 minutes of instruction annually. (*See Exhibit 2, AMA Charter, pg. 83.*) However, AMA’s Board took specific action to reduce the offering of instructional minutes (to 57,285 minutes for 9th and 10th grade students and 58,695 minutes for 11th and 12th grade), and approved a Master Schedule that allocates 28% of its instructional minutes to non-core courses. This raises particular concerns regarding AMA’s capacity to provide students with an educational experience with desired academic outcomes represented in the approved charter.

II. CONCERN REGARDING GENERAL CAPACITY TO OPERATE CHARTER SCHOOL

In addition to and as confirmed by the specific facts and violations described above, the District has serious concerns regarding the demonstrated lack of capacity and accountability demonstrated by the AMA Board and administration in handling these violations¹⁶. In total, these facts and violations also amount to significant errors in judgment on the part of the AMA Board and raise serious concerns about said members' effectiveness in governing a sound, legally compliant public school.

The AMA Board has failed to monitor and adhere to compliance requirements over the course of this charter term as evidenced by the Annual Performance-Based Oversight Visit Reports' ratings of *Unsatisfactory* and *Developing* in the 2019-2020, 2020-2021, 2021-2022, and 2022-2023 school years (See Exhibit 7, 2019-2020 Oversight Report; Exhibit 8, 2020-2021 Oversight Report; Exhibit 9, 2021-2022 Oversight Report, Exhibit 27, 2022-2023 Oversight Report) in addition to the issuance of six Notices to Cure addressing major compliance areas, including but not limited to employee criminal background clearances, employee tuberculosis clearances, teacher credentialing and appropriate assignments, mandated trainings, timely response to all reasonable inquiries, Local Control and Accountability Plan submission, maintaining required number of board members per Bylaws, breach of the operative charter, and meeting minimum annual instructional minutes. (See Exhibit 10, Notice to Cure 12-19-19; Exhibit 11, Notice to Cure 6-25-21; Exhibit 21, Notice to Cure 11-7-22; Exhibit 25, Notice to Cure 2-15-22; and Exhibit 26, Notice to Cure 5-12-22.)

REASONABLE PERIOD OF TIME TO REMEDY VIOLATIONS

The following violations need to be addressed **on or before May 18, 2023**. Please provide a detailed, written response addressing each of the specifically identified violations. You may attach to your written response any supporting evidence of your refutation of the identified violations or remedial actions that have been (or that are proposed to be) taken by AMA. Please submit your response to LAUSD's Charter Schools Division:

José Cole-Gutiérrez, Director
Charter Schools Division
333 South Beaudry Avenue, 20th Floor
Los Angeles, CA 90017

Upon the conclusion of the reasonable time to remedy, the LAUSD Board shall evaluate AMA's response and any supporting evidence provided. If there is substantial evidence that AMA has

¹⁶ Please note that AMA remains Not in Good Standing on a separate issue [operating at a non-LAUSD Board approved location] for its failure to comply with applicable requirements. AMA submitted a material revision application to address this separate issue which is pending and planned for LAUSD Board action in June 2023.

failed to remedy a violation identified in the Notice of Violation or to refute a violation to the LAUSD Board's satisfaction, the LAUSD Board may continue revocation of the charter by issuing a Notice of Intent to Revoke to AMA's governing body within 60 calendar days of the conclusion of the remedy period.

SERVICE

Upon the LAUSD Board's approval of issuance of Notice of Violation at the Board meeting dated April 18, 2023, LAUSD's Charter Schools Division shall issue the Notice of Violation to:

John White, Board President
345 South Figueroa Street,
Los Angeles, CA 90071
Email: board@academyofmediaarts.org

RESOLUTIONS